



**AFFIDAVIT FOR THE REPLACEMENT OF STALE
DATED WARRANT**
OFFICE OF THE AUDITOR-CONTROLLER

SPM FORM
AP – 13
(POLICY # 214)
PAGE 1 OF 4

Government Code Section 29802. (a) Any warrant issued is void (stale) if not presented to the county treasurer for payment within six months after its date. (b) Any time within two years from the date on which the original warrant became void (stale), the payee or assignee of any stale dated warrant may present the warrant to the auditor to draw new warrants within the limitations prescribed by board resolution. (c) Any time after a period of two years from the date on which the original warrant became void (stale), the payee or assignee will need to **present the warrant to the auditor** to draw new warrants within the limitations prescribed by board resolution.

Provide all information. **An incomplete form will be returned.**

WARRANT INFORMATION			
DATE	AMOUNT	NUMBER	BUSINESS UNIT

Are you the legal owner or custodian of this warrant?

☐

Yes

☐

No

If you are not the payee, but are the legal owner or custodian, attach proof of authority (e.g., company letterhead showing affiliation with payee).

Is the stale dated warrant included with your documentation?

☐

Yes

☐

No

By signing this declaration, I understand that if the stale dated warrant should come into my possession or if for any reason it is found that the claimant is not entitled to the payment or claimant receives a duplicate payment, the warrant it is not to be cashed but returned immediately to the Office of the Auditor-Controller at the following e-mail or mailing address:

ACOSTaleDatedWarrant@RIVCO.ORG

County of Riverside • Office of the Auditor-Controller
4080 Lemon Street, 6th Floor • P. O. Box 1326 • Riverside, CA 92502-1326

I declare, under penalty of perjury under the laws of the State of California, that the foregoing is true and correct. I have not received any part of the money, nor any benefits from said warrant. I have not authorized anyone to endorse said warrant to receive money for myself or to make payment on my behalf for any personal or financial obligation.

ALL PAYEES MUST SIGN – See Page 3

SIGNATURE (Payee/Business Claimant)

CONTACT NUMBER

PRINTED NAME (Payee/ Business Name)

BUSINESS CLAIMANT NAME AND TITLE

MAILING ADDRESS

EMAIL ADDRESS



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**Stale Dated Warrants is \$1,000 or over
Declaration is required for Each Payee**

Declaration

I, _____, residing at _____
(Print Name) (Street Address)

_____, declare as follows:
(City) (State and ZIP code)

- I certify under penalty of perjury the information contained in this claim is true and correct, and of my own personal knowledge.
- I further certify that I am the owner of this claim, and am the person entitled to the money and property set forth in this claim.

I declare, under penalty of perjury under the laws of the State of California, the foregoing is true and correct.

SIGNATURE (Payee / Business Claimant)

Executed at _____, _____ on _____
(City) (State) (Date)

NAME (Payee / Business Name) **Warrant Number** **Warrant Amount**

MAILING ADDRESS

SIGNATURE WITNESSED BY NOTARY PUBLIC	PLACE NOTARY SEAL HERE
<i>A notary public or other officer completing this certification verifies only the identity of the individual, who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.</i> Subscribed and sworn to (or affirmed) before me on this day of _____, 20____, by _____ _____ proved to me on the basis of satisfactory evidence to be the person(s) who appeared before me. Signature of Notary Public _____	

**Return to: County of Riverside • Office of the Auditor-Controller
Stale Dated Warrants Desk
4080 Lemon Street, 6th Floor • P. O. Box 1326 • Riverside, CA 92502-1326**



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Guidelines for Authorized Signers

(A) Individual - If the payee on the warrant is an individual, the person named as the payee must sign the form. If there are multiple payees listed on the warrant, each payee **MUST** sign the form.

- **Picture ID (A copy of a valid government issued photo IS REQUIRED).** ID provided must include payee's signature.
- If your name differs from how it appears on the warrant, submit legal documentation supporting the name change (e.g. marriage certificate, adoption papers, divorce decree, etc.)

(B) Corporation - If the warrant is payable to a corporation (including Non-Profit Corporate structures), the form must be signed by an officer of the corporation. **The qualifying officer's business card and a copy of his/her valid government issued photo identification are REQUIRED.** Qualifying officers include the following:

- Chairman of the Board
- President
- Chief Executive Officer
- Chief Financial Officer
- Corporate Secretary or Assistant Corporate Secretary
- Executive or Senior Vice President
- Vice President
- General Counsel
- Treasurer or Assistant Treasurer
- Controller or Assistant Controller
- Chief Accounting Officer
- Director (Non-Profit ONLY)
- Property Tax Manager (ONLY if the claim is for a property tax refund)

Proof of Officer's Title - If the warrant is payable to an organization evidence to substantiate the signor's position within the organization must be provided. Examples of such evidence include the following: a company letter head including the officer's title, business card, signature, approval and authorization for signor to act on behalf of the business, a partnership agreement, or the articles of organization.

(C) Partnership - If the warrant is payable to a General Partnership or a Limited Partnership, the form must be signed by a General Partnership of the organization. A Limited Partner is approved to sign the form **ONLY** if this person has been specifically authorized by the partnership to participate in the control and management of the business. **A copy of a valid government issued photo identification of the signee is REQUIRED.**

(D) Limited Liability Company - If the warrant is payable to a Limited Liability Company, the form must be signed by a Managing Member of the organization. A Manager is approved to sign the form **ONLY** if this person has been specifically authorized by the membership to participate in the control and management of the business. **A copy of a valid government issued photo identification of the signee is REQUIRED.**

(E) Sole Proprietorship - If the warrant is payable to a Sole Proprietorship, the form must be signed by the owner of the business. **A copy of a valid government issued photo identification of the signee is REQUIRED.**

(F) Government Agency - If the warrant is payable to a Government Agency, the form must be signed by an officer of the agency. **A copy of a valid government issued photo identification of the signee is REQUIRED.** Qualifying officers include the following:

- Executive Officer
- Chief Administrative Officer
- Chief Financial Officer
- Finance Director
- Agency Director
- Department Head/Chief or Assistant Department Head/Chief
- Bureau Chief or Assistant Bureau Chief
- Division Chief
- Treasurer or Assistant Treasurer
- Controller or Assistant Controller
- Fiscal Officer



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(G) Trust - If the warrant is payable to a Trust, the form must be signed by EACH individual who has been appointed as a trustee. Required supporting documentation includes a copy of the Trust Agreement that gives the names of each trustee. **A copy of a valid government issued photo identification of the signee is REQUIRED.**

(H) Estate / Deceased Payee - If the warrant is payable to an estate of a deceased individual or to a person who is now deceased, the form must be signed by either the executor or the administrator of the estate. Required supporting documentation includes a copy of the Death Certificate and evidence of appointment as executor or administrator. **A copy of a valid government issued photo identification of the signee is REQUIRED.**

(I) Notarization - If the dollar amount is \$1,000 or over, page 2 of AP-13 form must be notarized by an authorized notary public. Please note that as of January 1, 2015 any document notarized in California must include the consumer disclosure shown below. Please be aware if notarized document does not follow California Law it will be rejected.

A notary public or other officer completing this certification verifies only the identity of the individual, who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

(J) Proof of Address - If mailing address is different from the address in the original warrant, the claiming payee or company must provide evidence that links the payee to the address shown on the original warrant. Such evidence must contain the same name and address as printed on the warrants. Please note that neither a Substitute Property Bill nor an Adjusted Property Tax can be accepted as proof of address. Examples of such evidence included the following: driver's license, utility bill, or a bank statement.

(K) Proof of Acquisition (or Merge) (Only for Companies) If the warrant is payable to a company that has since been acquired by (or merged with) another company, the acquiring company must provide legal evidence of such acquisition (or merger). Warrants reissued for companies that have been acquired or merged will be made payable to the original payee.

(L) Closed / Sold / Dissolved Entities - If warrant was issued to a corporation that is no longer in business, claimant must provide evidence authorizing him/her to the stale dated warrant. Documents such as Final Federal Tax return filed including Schedule C or buy/sell agreements showing who has the right to unclaimed assets after the close of sale must be submitted.

(M) Power of Attorney - If the payee utilizes a third-party agent (such as an asset recovery company) to file a claim, an AP-13 Stale Dated Warrant request form must be signed by payee or business representative and a notarized Power of Attorney MUST be submitted with the form. Power of Attorney must include printed and signed name of payee or business representative along with third-party agent printed name and signature. Please note, both documents should be signed by the same person who signed the AP-13 Stale Dated Warrant request form.

(N) Claims Submission and Review - Please be sure to include ALL required information with your claim request. FAILURE TO SUBMIT A CLAIM INCLUDING THE REQUIRED DOCUMENTATION MAY RESULT IN THE CLAIM BEING DENIED AND RETURNED TO THE SENDER. As a result, claimants are requested to provide all requested information in order to expedite our review process and to substantiate the claimant's right to the stale dated warrant. If, for any reason, you cannot provide the documentation as requested, please attach a letter explaining why you are entitled to the stale dated warrant and any special circumstances that may apply to your claim.

The completed claim(s) and required supplemental information should be e-mail, mailed, or delivered to:

ACOSTaleDatedWarrant@RIVCO.ORG

County of Riverside
Office of the Auditor-Controller
Attn: Stale Dated Warrant Desk
4080 Lemon Street, 6th Floor
P.O. Box 1326
Riverside, CA 92502-1326

Please note that it may take up to 90 days to process your claim, and if approved, approximately 30 additional days for you to receive payment. This process may take longer under certain circumstances.

Disclaimer: Claimant agrees that if for any reason it is found that the claimant is not entitled to the payment or claimant receives a duplicate payment, the claimant will return the funds to the County Riverside Auditor-Controller Office within fifteen (15) days of receipt. The County of Riverside reserves the right to request additional information as deemed necessary.

Board of Supervisors approval is required for warrants \$10,000 or over.